

HOUSE No. 1773

The Commonwealth of Massachusetts

PRESENTED BY:

Bradley H. Jones, Jr.

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act prohibiting motor vehicle tracking devices without consent.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Bradley H. Jones, Jr.</i>	<i>20th Middlesex</i>	<i>1/14/2025</i>
<i>Kimberly N. Ferguson</i>	<i>1st Worcester</i>	<i>1/15/2025</i>
<i>Paul K. Frost</i>	<i>7th Worcester</i>	<i>1/31/2025</i>
<i>Todd M. Smola</i>	<i>1st Hampden</i>	<i>3/10/2025</i>
<i>David K. Muradian, Jr.</i>	<i>9th Worcester</i>	<i>1/29/2025</i>
<i>Hannah Kane</i>	<i>11th Worcester</i>	<i>1/31/2025</i>
<i>Kelly W. Pease</i>	<i>4th Hampden</i>	<i>3/24/2025</i>

HOUSE No. 1773

By Representative Jones of North Reading, a petition (accompanied by bill, House, No. 1773) of Bradley H. Jones, Jr., and others relative to prohibiting motor vehicle tracking devices without consent. The Judiciary.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 1572 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act prohibiting motor vehicle tracking devices without consent.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 265 of the General Laws, as appearing in the 2022 Official Edition, is hereby
2 amended by inserting after Section 43A the following new section:-

3 Section 43B. (a) (1) For the purposes of this section, the term “electronic mobile tracking
4 device” shall mean any device that tracks and reveals the location of the device and transmits the
5 location to a mobile phone or computer.

6 (2) Except as provided in subsection (b) of this section, whoever willfully and knowingly
7 installs, conceals, or otherwise places for use an electronic mobile tracking device in or on a
8 motor vehicle without the consent of the operator and occupants of the vehicle for the purpose of

monitoring or following the operator or occupants of the vehicle shall be guilty of the crime of criminal harassment, as provided in section 43A of chapter 265 and the punishments thereof.

(b) (1) It shall not be a violation of this section if the installation, concealment, placement, or use of an electronic mobile tracking device in or on a motor vehicle is by, or at the direction of, a law enforcement officer in furtherance of a criminal investigation and is carried out in accordance with applicable state and federal laws.

(2) It shall not be a violation of this section if the installation, concealment, placement, or use of an electronic mobile tracking device in or on a motor vehicle is by a parent or legal guardian that owns or leases the vehicle, and if the device is used solely for the purpose of monitoring a minor child of the parent or legal guardian when the child is an operator of the vehicle.

(3) It shall not be a violation of this section if the electronic mobile tracking device is attached to a vehicle that has been stolen from the owner for the purposes of locating the stolen vehicle, upon notice to local law enforcement.

(4) It shall not be a violation of this section if an electronic mobile tracking device is installed and or used by a business that does business in the Commonwealth and the device is used for the purpose of tracking vehicles that are owned or leased by the business and driven by employees or affiliates of such business.

(c) The provisions of this section shall not apply to electronic or telematic systems installed by the manufacturer of a motor vehicle or such systems used by businesses licensed to rent cars to consumers or by insurance companies upon the owner's or vehicles lessee's permission.

31 (d) A violation of this section shall be punishable under the punishments provided in
32 section 43A of chapter 265.